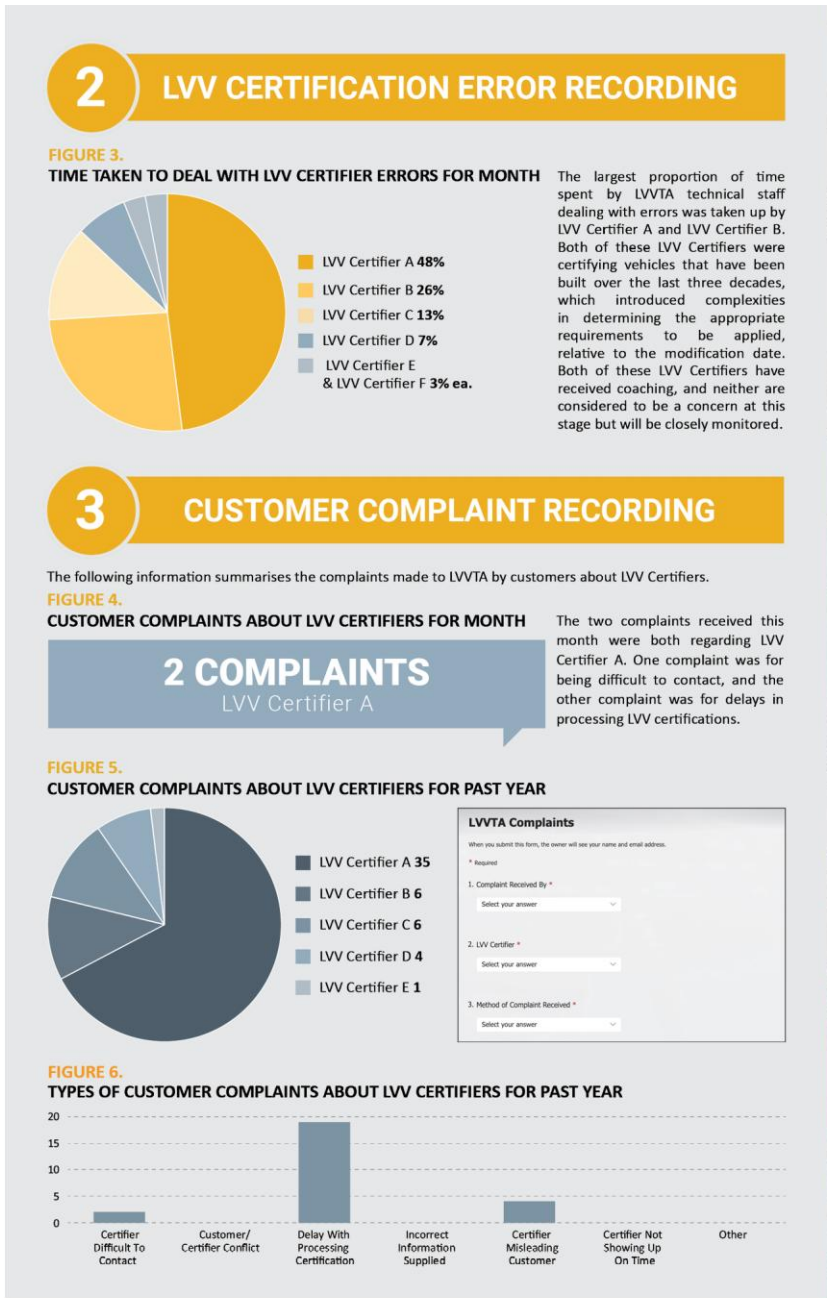


LVV Operating Requirements Schedule

Chapter 13

LVV Complaint & Performance Management

Version 12 | Effective from 1 March 2026



Approval Record

Signed in accordance with clause 1.3(5) of the Low Volume Vehicle Code of LVVTA, on by:			
New Zealand Transport Agency		Low Volume Vehicle Technical Association	
Name	Signature	Name	Signature
	_____		_____

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• LVV ORS – Amendment # 9	Version 10	1 October 2016	1 October 2016
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Note 1 The first ten amendment processes to the LVV ORS (Amendment #s 1-10), carried out between August 2003 and June 2017, were made to the complete ORS document. From Amendment # 11 (which is Version 12, issued 1 February 2026), amendments are carried out to individual chapters. Note 2 Text highlighted in grey shows amendments that have been made subsequent to the previous version of this chapter, and a grey vertical stroke to the left of the text denotes important new or changed information (which may include information which has been removed).			

About the LVV Operating Requirements Schedule

The LVV Operating Requirements Schedule (LVV ORS), and its sub-set of LVV ORS chapters (the chapters) set out the operational systems and processes which enables the LVV certification system to function effectively. Whereas the *Low Volume Vehicle Code* provides the legal platform upon which the LVV certification system operates, the LVV ORS provides robust operational systems and processes to ensure that LVV certification outcomes are consistent, fair, transparent, and of a high quality.

Author, Publisher, & Owner

This chapter is authored, published, and owned by the Low Volume Vehicle Technical Association Incorporated (LVVTA). LVVTA is an incorporated society established in 1992, that represents a group of specialist automotive organisations (in turn representing approximately 150,000 members) who are dedicated to ensuring that vehicles, when scratch-built or modified, meet the highest practicable safety standards.

The information in this chapter has stemmed from work undertaken by LVVTA founding member organisations that commenced in 1989 and has been progressively developed as an integral part of the New Zealand Government's land transport regulatory system, by agreement and in consultation with the New Zealand Transport Agency (NZTA).

As a result, the considerable experience in specialist certification management built up by LVVTA and the specialist automotive member groups over the past several decades can be of benefit to members of the New Zealand public who also wish to build or modify motor vehicles.

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User's Feedback

This chapter is constantly undergoing an evolutionary development process in order to keep pace with changing trends and technology. To assist in this, LVVTA invites users of the chapter to engage in an ongoing consultation process with us by making submissions for any changes, additions, or clarifications which might improve the chapter, at any time.

Any submissions made via this rolling consultation process will be thoroughly considered, and incorporated, where appropriate, at the next available amendment opportunity.

Submissions should be made to submission@lvta.org.nz with the name of this chapter in the Subject line.

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Chapter 13

LVV Complaint & Performance Management

Purpose of this Chapter

The purpose of this LVV Operating Requirements Schedule chapter (the chapter) is to set out the various processes about how LVV certification system-related complaints are managed, and the ways in which LVVTA ensures that LVV Certifiers consistently perform at a high level.

This chapter explains:

- the expected standard of performance by an LVV Certifier; and
- how complaints are managed; and
- how safety risks are assessed and assigned; and
- the relationship between LVVTA's 'support systems' and 'performance management processes'; and
- how LVVTA's performance management processes are applied to LVV Certifiers; and
- when and how LVVTA escalates LVV Certifier performance issues to NZTA.

This chapter should be read in conjunction with several other LVV ORS chapters which are individually referred to throughout this chapter.

Italics are used throughout this chapter when referencing 'external documents' that are not part of this chapter.

Section 1 Expected Standard of Performance

1.1 Introduction

Problems in relation to LVV Certifier performance are rare, but the potential implications to vehicle safety and to the reputation of NZTA, LVVTA, and the low volume vehicle certification system as the result of poor decisions by an LVV Certifier can be significant.

LVVTA and NZTA understand that the LVV certification process is highly complex and diverse, and that any LVV Certifier can make a technical or operational mistake now and then. Even the most skilled and experienced LVV Certifier can have a bad day, and LVV Certifiers should be given the opportunity to resolve the issue and move on. LVVTA's normal support systems and performance management processes usually look after these situations, and providing the LVV Certifier recovers well (puts up a hand, learns from it, and doesn't repeat the mistakes), NZTA has no desire to become involved.

Where multiple complaints or poor technical decisions, or poor conduct become evident despite the application of LVVTA's support systems and performance management processes, LVVTA is obliged to notify NZTA, and NZTA will become involved.

This section sets out what is expected of an LVV Certifier, and a basic overview of what occurs if an LVV Certifier doesn't meet the required performance expectations.

1.2 Overview of expectations

1.2(1) An LVV Certifier is expected to provide a consistently high standard of LVV certification performance, particularly in relation to:

- (a) understanding and applying the technical requirements of the LVV certification system (see Note 1 below); and

- (b) understanding and applying the operational requirements of the LVV certification system (see Note 2 below); and
- (c) providing fair and efficient customer service (see Note 3 below).

Note 1	It is especially important that an LVV Certifier correctly applies the LVV certification system's safety-related technical requirements, which are primarily contained in the <i>LVV Standards</i> , <i>NZ Car Construction Manual</i> , and <i>NZ Motorcycle Construction Manual</i> . These documents are all available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz
Note 2	An LVV Certifier should be familiar with the operational requirements set out in all 16 of the <i>LVV Operating Requirements Schedule (ORS) chapters</i> , which are all available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz
Note 3	Customer service expectations of an LVV Certifier are detailed in <i>LVV ORS Chapter 7: LVV Certifier Conduct & Service</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

1.3 Measuring LVV certification performance

- 1.3(1) An LVV Certifier's expected standard of consistently high LVV certification performance is measured by:
- (a) results from the application of the File Review System to the LVV Certifier's *LVV Certification Files* (see Note 1 below); and
 - (b) where an LVV Certifier is positioned within LVVTA's Error Report Summaries (see Note 2 below); and
 - (c) how an LVV Certifier works with LVVTA during the application of LVVTA's support systems (see Note 3 below); and
 - (d) feedback from users of the LVV certification system and other third parties (see Note 4 below).

Note 1	The File Review System is explained in <i>LVV ORS Chapter 10: LVV File Review System</i> , and <i>LVV Certification Files</i> are explained in <i>LVV ORS Chapter 9: Submission of LVV Certification Files</i> , which are available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz
Note 2	LVVTA's Error Report Summaries are detailed in <i>LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz
Note 3	LVVTA's support systems are outlined in 'Section 4 – Support Systems vs Performance Management Processes' of this chapter.
Note 4	Feedback can include formal complaints, and also informal expressions of concern, from users of the LVV certification system and other third parties. An informal expression of concern will not usually be acted upon on its own, however it may be taken into consideration in the application of LVVTA's support systems, and may also be considered in association with a formal complaint.

1.4 LVVTA support & management

- 1.4(1) LVVTA is responsible for:
- (a) guiding and supporting all LVV Certifiers in providing the expected standard of consistently high LVV certification performance; and
 - (b) applying LVVTA's 'support systems', where required, to help 'low-risk' LVV Certifiers provide the expected standard of consistently high LVV certification performance (see Notes 1 and 2 below); and

- (c) except in the case of 1.4(2), applying LVBTA's 'performance management' processes where an LVB Certifier fails to provide the expected standard of consistently high LVB certification performance and becomes a 'high-risk' LVB Certifier (see Notes 3 and 4 below).

Note 1	LVBTA's 'support systems' are referred to in 'Section 4 – Support Systems vs Performance Management Processes' in this chapter.
Note 2	An explanation of 'low risk' LVB Certifiers is provided in 'Section 4 – Support Systems vs Performance Management Processes' in this chapter.
Note 3	LVBTA's performance management processes are detailed in Sections 5 to 9 of this chapter.
Note 4	An explanation of 'high-risk' LVB Certifiers is provided in 'Section 4 – Support Systems vs Performance Management Processes' in this chapter.

- 1.4(2) LVBTA cannot continue to support and manage an LVB Certifier if:
- (a) the LVB Certifier has made multiple technical decisions that have resulted in an 'extreme' level of safety risk (see Note 1 below); or
 - (b) LVBTA has exhausted its performance management processes, and the performance issues have not been resolved (see Note 2 below); or
 - (c) the LVB Certifier is unwilling to work with LVBTA in a spirit of cooperation and willingness to achieve a resolution to the performance issues.

Note 1	An 'extreme' level of safety risk is established by Table 13.1 – Risk-assessment Matrix in 'Section 3 – Assessing & Managing Risk' in this chapter.
Note 2	LVBTA's performance management processes are detailed in Sections 5 to 9 of this chapter.

1.5 Escalation to NZTA

- 1.5(1) Where LVBTA cannot continue to support and manage an LVB Certifier because 1.4(2)(a), (b), or (c) applies, LVBTA will refer the LVB Certifier's performance issues, as a formal complaint, to NZTA (see Note 1 below).

Note 1	Referrals to NZTA will be carried out in accordance with the formal <i>LVBTA-NZTA Complaint & Escalation Process</i> referred to in 'Section 11 – Escalation to NZTA' in this chapter.
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Section 2 Complaint Management

2.1 Introduction

Whenever an issue arises that brings into question the safety of an LVB certified vehicle, or the quality of service provided to the motoring public by an LVB Certifier, the issue must be investigated and resolved, with safety as a principal focus. The systems that are applied to deal with these issues when they arise must be sound, process-based, and transparent to ensure that fairness and consistency occur.

When LVBTA receives a complaint from a customer of an LVB Certifier – which is most commonly about basic customer service issues – LVBTA engages with the LVB Certifier and the customer to resolve the issue.

In addition to finding a resolution, LVBTA also operates an LVBTA '*Customer Complaints Tracker*', which records the outcome of every customer service-related complaint made about an LVB Certifier.

The information compiled in the *Customer Complaints Tracker* populates a ‘*Monthly Customer Complaints Report*’, which enables LVVTA to clearly identify those LVV Certifiers who are creating reputational damage to the LVV certification system.

By understanding the customer service areas in which LVV Certifiers fall short, LVVTA can provide specialised training to help LVV Certifiers continuously improve their customer service quality.

This section sets out how complaints about LVV Certifiers, an LVV certified vehicle, LVVTA, or the LVV certification system, are managed.

2.2 Making a complaint against an LVV Certifier

2.2(1) A person who wishes to make a complaint against an LVV Certifier should (see Note 1):

- (a) in the first instance direct the complaint to the LVV Certifier in question; and
- (b) if it is not practical for the complainant to deal directly with the LVV Certifier in question, or the result of engaging with the LVV Certifier proves unsatisfactory, the complaint should then be directed, in writing, to LVVTA (see Note 2 below); and
- (c) if the result of engaging with LVVTA also proves unsatisfactory, the complaint should then be directed, in writing, to NZTA (see Note 3 below).

Note 1	A person making a complaint against an LVV Certifier may be a user of the LVV certification system (including a customer), or a third party (which may be a member of the motor vehicle industry or another LVV Certifier).
Note 2	A complaint directed to LVVTA about an LVV Certifier should be made on LVVTA’s <i>On-line Complaints Form</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz
Note 3	A complaint directed to NZTA about an LVV Certifier should be made to NZTA’s Complaints Section at www.nzta.govt.nz

2.3 Managing a complaint against an LVV Certifier

2.3(1) If LVVTA receives a complaint from a customer about an LVV Certifier, LVVTA will:

- (a) contact the LVV Certifier to gain an understanding of the LVV Certifier’s perspective on the issues at the heart of the complaint; and
- (b) manage the complaint using its internal complaint resolution procedure (see Note 1 below); and
- (c) work with the LVV Certifier and the customer to achieve, where possible, a satisfactory resolution for both parties.

Note 1	LVVTA’s internal complaint resolution procedure is detailed in ‘Appendix 2 – LVVTA Complaint Resolution Procedure’ at the back of this chapter.
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2.4 Obligations of an LVV Certifier when the subject of a complaint

2.4(1) During LVVTA’s complaint management process, an LVV Certifier must:

- (a) work with LVVTA in a spirit of cooperation and goodwill; and
- (b) make all reasonable efforts to address the complaint and, where possible resolve the situation; and
- (c) regardless of the outcome, log the complaint, with the relevant history and outcome, in the NZTA Performance Review System (PRS) Manual (see Note 1 below).

Note 1 The Performance Review System is a tool used by NZTA to measure the certification performance of all LVV Certifiers.

2.5 Recording customer complaints about LVV Certifiers

- 2.5(1) Each complaint received by LVVTA from the customer of an LVV Certifier will:
- (a) be recorded, at the time, in a *Customer Complaints Tracker*; and
 - (b) be transferred monthly into a *Monthly Customer Complaints Report*, which over time will populate an *Annual Customer Complaints Report*.
- 2.5(2) The information captured in the *Monthly Customer Complaints Reports*, and the *Annual Customer Complaints Reports*, will be used by LVVTA to:
- (a) develop and provide specialised training to assist all LVV Certifiers in providing better customer service into the future; and
 - (b) apply, where necessary, targeted support systems and performance management processes to individual LVV Certifiers in an effort to eliminate customer service issues into the future (see Note 1 below).

Note 1 LVVTA's support systems and performance management processes are outlined in 'Section 4 – Support Systems vs Performance Management Processes' of this chapter.

2.6 Making a complaint against LVVTA

- 2.6(1) A person who wishes to make a complaint against LVVTA, or an LVVTA staff member, should:
- (a) in the first instance direct the complaint, in writing, to the Chief Executive Officer of LVVTA (see Note 1 below); and
 - (b) if the result of engaging with the Chief Executive Officer of LVVTA proves unsatisfactory, the complaint should then be directed, in writing, to the Chairperson of LVVTA's Board (see Note 1 below); and
 - (c) if the result of engaging with the Chairperson of LVVTA's Board also proves unsatisfactory, the complaint should then be directed, in writing, to NZTA (see Note 2 below).

Note 1 A complaint directed to the Chief Executive Officer of LVVTA, or Chairperson of LVVTA's Board, should be made on LVVTA's *On-line Complaints Form*, which is available to the public electronically, free of charge, from the LVVTA website www.lvta.org.nz

Note 2 A complaint directed to NZTA about LVVTA should be made to NZTA's Complaints Section at www.nzta.govt.nz

2.7 Obligations of LVVTA when the subject of a complaint

- 2.7(1) If a complaint is made against LVVTA, or an LVVTA staff member, LVVTA will:
- (a) make all reasonable efforts to address the complaint and, where possible resolve the situation; and
 - (b) record the details of the complaint and the outcome; and
 - (c) notify NZTA of the complaint.

Section 3 Assessing & Managing Risk

3.1 Introduction

LVVTA identifies potential safety risk associated with an LVV certified vehicle through feedback, such as a complaint or an informal expression of concern, from the users of the LVV certification system or other third party. When this happens, LVVTA assesses the level of safety risk presented so that it can focus on the technical decisions that create the greatest need for intervention, and to identify the point at which NZTA involvement is required.

This section sets out how LVVTA determines the level of safety risk, and then how the safety risk is managed.

3.2 Assessing safety risk

3.2(1) LVVTA will, when managing a complaint from a user of the LVV certification system or other third party about an LVV certified vehicle, establish the level of safety risk associated with the vehicle by assessing the combination of (see Table 13.1 - LVVTA Risk-assessment Matrix below, and Notes 1 to 5 below):

- (a) the likelihood of harm occurring because of the safety risk; and
- (b) the extent of the harm that could occur because of the safety risk.

Table 13.1 - LVVTA Risk-assessment Matrix

	Risk of minor occupant injury	Risk of serious occupant injury	Risk of serious multi-occupant injury	Risk to other road users from loss of vehicle control
Likely to occur	High	High	Extreme	Extreme
Unlikely to occur	Medium	High	High	Extreme
Very unlikely to occur	Low	Medium	High	High

Note 1 LVVTA has developed this bespoke LVVTA Risk-assessment Matrix specifically for the LVV certification environment.

Note 2 When assessing safety risk based on Table 13.1, where the:

- risk rating falls into more than one column, the highest risk rating is selected; and
- problem affects a series of vehicles that are modified or built identically, risk rating increases by one; and
- likelihood of risk is present only when the vehicle is subjected to extreme use, risk rating reduces by one.

Note 3 Examples of the four safety risk areas (across the top of Table 13.1) are:

- 'Risk of minor occupant injury': potential for knee injury due to unprotected lower dashboard shelf; or arm laceration due to insufficient radius on interior door handles or window winders; and
- 'Risk of serious occupant injury': potential for head injury due to sharp or hard objects intruding into A-zone; or upper torso injury due to poorly designed steering system impact design; and
- 'Risk of serious multi-occupant injury': potential for head and upper torso injury due to inadequate seatbelt anchorages, or inadequate seat design or attachment system, in more than one seating position; and
- 'Risk to other road users through potential loss of vehicle control': potential for collision with other road users or pedestrians through loss of directional or braking control as a result of steering component failure, braking component failure, or driver's seat failure.

Note 4 Table 13.1 LVVTA Risk-assessment Matrix may also be applied on a case-by-case basis, where the LVVTA-NZTA Technical Working Group has determined that a 'Technical High Error' should be assessed against Table 13.1 (see *Section 2 – Error Reports of LVV ORS Chapter 11: LVV Certifier Error Reporting & Recording*).

Note 5 Table 13.1 LVVTA Risk-assessment Matrix follows time-proven risk-management principles incorporated within *Risk Management Standard AS/NZS 4360:2004*.

3.3 Assigning safety risk rating

- 3.3(1) A safety risk rating will be assigned for an LVV certified vehicle that is the subject of a complaint, through the application of 'Table 13.1 – LVVTA Risk-assessment Matrix', which will be either 'Low', 'Medium', 'High' or 'Extreme'.

3.4 Management of safety risk

- 3.4(1) A safety risk, as assigned by the application of 'Table 13.1 – LVVTA Risk-assessment Matrix', will (see Notes 1 and 2 below):

- (a) if it is a 'low risk' or 'medium risk', be managed internally by LVVTA using one or more of its support systems or performance management processes; or
- (b) if it is a 'high risk', may, as determined on a case-by-case-basis, be either managed internally by LVVTA using one or more of its support systems or performance management processes, or at LVVTA's discretion, be referred to NZTA; or
- (c) if it is an 'extreme' risk, be referred directly to NZTA.

Note 1	LVVTA's support systems and performance management processes are referred to in 'Section 4 – Support Systems vs Performance Management Processes' of this chapter.
Note 2	Referrals to NZTA will be carried out in accordance with the formal <i>LVVTA-NZTA Complaint & Escalation Process</i> , detailed in 'Section 11 – Escalation to NZTA' in this chapter.

- 3.4(2) When considering whether a 'high' safety risk, as specified in 3.4(1)(b), will be dealt with by LVVTA, or referred to NZTA, LVVTA will take into consideration:

- (a) the level of negligence on the part of the LVV Certifier; and
- (b) whether or not the problem was readily identifiable, and the expected ease with which the LVV Certifier should have identified the problem; and
- (c) whether or not the LVV certification technical requirements provide adequate guidance with which to enable the LVV Certifier to correctly deal with the issue; and
- (d) the LVV certification history of the LVV Certifier; and
- (e) the level of co-operation and willingness shown by the LVV Certifier while working with LVVTA in order to resolve the complaint.

- 3.4(3) A resolution which may be negotiated between LVVTA and the LVV Certifier in determining whether a 'high' safety risk, as specified in 3.4(1)(b), will be dealt with by LVVTA or referred to NZTA, may be where the LVV Certifier voluntarily (see Note 1 below):

- (a) relinquishes one or more LVV certification categories where the LVV Certifier is operating at a higher level of risk; or
- (b) undergoes one or more of the performance management processes specified in Sections 5 to 9 of this chapter.

Note 1	Achieving a negotiated resolution between LVVTA and the LVV Certifier in order to enable a 'high' safety risk technical decision to be managed by LVVTA (rather than being referred to NZTA) is subject entirely upon achieving a reduction of safety-risk to the motoring public, and the LVV Certifier maintaining a high level of cooperation and willingness during the course of working with LVVTA in order to resolve the issue.
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Section 4 Support Systems vs Performance Management Processes

4.1 Introduction

One of LVVTA's roles is to provide all necessary help and guidance to LVV Certifiers who consistently maintain a high standard of LVV certification performance. To help achieve this, LVVTA has developed a number of formalised and well-established 'support systems' for these 'low-risk' LVV Certifiers, so that when the occasional mistake is made, these support systems can be applied to help them learn, improve, and avoid repeating the same mistake. It is NZTA's desire that LVVTA manages these support systems without their involvement.

LVVTA has also developed a range of higher-level 'performance management' processes, to be applied in situations when the support systems do not bring about the desired improvements and an LVV Certifier has, or may, become a 'high-risk' LVV Certifier. These performance management processes are applied, on a case-by-case basis, with NZTA's support and agreement.

LVVTA's support systems are intended to prevent problems escalating to a point where a low-risk LVV Certifier becomes a high-risk LVV Certifier, and performance management processes have to be put in place.

This chapter sets out the differences between LVVTA's support systems and performance management processes.

4.2 Low-risk vs high-risk LVV Certifiers

4.2(1) A low-risk LVV Certifier is one who:

- (a) maintains a consistently high standard of LVV certification performance; and
- (b) does not feature disproportionately within LVVTA's:
 - (i) *Customer Complaints Reports* (see Note 1 below); or
 - (ii) *Error Report Summaries* (see Note 2 below).

Note 1 LVVTA's *Customer Complaints Reports* are detailed in 'Section 2 – Complaint Management' of this chapter.

Note 2 LVVTA's *LVV Certifier Error Report Summaries* are detailed in *LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

4.2(1) A high-risk LVV Certifier is one who does not meet the performance criteria specified in 4.2(1).

4.3 Support systems for low-risk LVV Certifiers

4.3(1) In the case of a low-risk LVV Certifier, LVVTA provides, as a means of normal ongoing support and guidance (see Notes 1 and 2 below):

- (a) **Coaching** (as detailed in *LVV ORS Chapter 10: LVV File Review System*); and
- (b) **Mentoring** (as detailed in *LVV ORS Chapter 14: LVVTA Services & Support*); and
- (c) **Helpdesk Support** (as detailed in *LVV ORS Chapter 14: LVVTA Services & Support*); and
- (d) **On-site Visits** (as detailed in *LVV ORS Chapter 14: LVVTA Services & Support*); and
- (e) **Training** (as detailed in *LVV ORS Chapter 14: LVVTA Services & Support*).

Note 1	LVVTA's Error Report Summaries are detailed in <i>LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz
Note 2	LVVTA's Error Report Summaries are detailed in <i>LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting</i> . <i>LVV ORS Chapter 10: LVV File Review System</i> , <i>LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting</i> , and <i>LVV ORS Chapter 14: LVVTA Services & Support</i> are all available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

4.4 Performance management processes for high-risk LVV Certifiers

4.4(1) In addition to the support systems specified in 4.3(1), in the case of a high-risk LVV Certifier, LVVTA will apply, as necessary, one or more of the following performance management processes (see Notes 1 and 2 below):

- (a) **Performance Monitoring** (as detailed in Section 5); or
- (b) **Performance Improvement Meetings** (as detailed in Section 6); or
- (c) **Imposed Mentoring** (as detailed in Section 7); or
- (d) **Competence Reassessment** (as detailed in Section 8); or
- (e) **Peer Review Process** (as detailed in Section 9).

Note 1	LVVTA's Error Report Summaries are detailed in <i>LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz
Note 2	The first four performance management processes specified in 4.4(1)(a) to (d) (Performance Monitoring, Performance Improvement Meetings, Imposed Mentoring, and Competence Reassessment) are all elements of an inter-connected upward-escalation system which are intended to address an LVV Certifier's general performance shortcomings, whereas the performance management process in 4.4(1)(e) (Peer Review Process) is a stand-alone process that is applied when assessing an LVV Certifier's decisions relating to a specific vehicle.

4.4(2) The performance management processes specified in 4.4(1)(a) to (d) are generally applied as a progressive upward escalation path, however any of the performance management processes specified in 4.4(1) can be applied singularly and directly if an LVV Certifier:

- (a) is considered by LVVTA and NZTA to present a serious safety risk to the public; or
- (b) causes significant customer service issues to the users of the LVV certification system.

4.4(3) Sections 5 to 9 detail the processes that LVVTA has developed over many years, with the support of NZTA, to address a situation when an LVV Certifier has ongoing performance shortcomings which present a risk to road safety, and when LVVTA's normal support systems haven't resolved the issue.

Section 5 Performance Monitoring

5.1 Introduction

Performance Monitoring is a process used by LVVTA to identify an LVV Certifier's specific areas of performance shortcomings, and then provide targeted coaching to resolve them.

5.2 When Performance Monitoring is applied

5.2(1) Performance Monitoring is an internal document-based desk-top auditing process, that may be applied in cases where LVVTA's normal support systems referred to in 4.3 have not resolved an LVV Certifier's performance shortcomings.

- 5.2(2) Performance Monitoring may be applied by agreement between LVVTA and NZTA either:
- (a) when an LVV Certifier is featuring disproportionately within LVVTA's *LVV Certifier Error Report Summaries* (see Notes 1 and 2 below); or
 - (b) in response to a complaint made against an LVV Certifier or about an LVV certified vehicle; or
 - (c) as a result of a disciplinary action taken against an LVV Certifier by NZTA.

Note 1 Falling into the 'red zone' of the *LVVTA Error Report Summary*, particularly for a sustained period, is a strong indicator that an LVV Certifier is 'featuring disproportionately' and is a 'high-risk' LVV Certifier.

Note 2 LVVTA's *LVV Certifier Error Report Summaries* are detailed in *LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvt.org.nz

5.3 Purpose of Performance Monitoring

- 5.3(1) The purpose of Performance Monitoring is to help an LVV Certifier to:
- (a) correctly apply the *LVV Standards* and other relevant LVV technical requirements; and
 - (b) make judgments and decisions that are technically and operationally sound.

5.4 Requirements of Performance Monitoring

- 5.4(1) Performance Monitoring:
- (a) requires the Technical File Review process specified in *Section 3 of LVV ORS Chapter 10: LVV File Review System*, to be applied to 100% of an LVV Certifier's *LVV Certification Files* (see Note 1 below); and
 - (b) will be applied for a specified period of time, or number of LVV certifications, as agreed on a case-by-case basis between LVVTA and NZTA.

Note 1 *LVV ORS Chapter 10: LVV File Review System* is available to the public electronically, free of charge, from the LVVTA website www.lvvt.org.nz

- 5.4(2) An LVV Certifier who is required to undergo Performance Monitoring must, for every *LVV Certification File* submitted:
- (a) meet the requirements specified in (see Note 1 below):
 - (i) *LVV ORS Chapter 9: Submission of LVV Certification Files*; and
 - (ii) *LVV ORS Chapter 10: LVV File Review System*;
 and
 - (b) provide, on request, for the purpose of clarification, any further information or detail requested by LVVTA; and
 - (c) comply with any directives, in a spirit of cooperation and willingness, that LVVTA provides in relation to remedial work considered necessary to bring a vehicle into a safe and compliant condition.

Note 1 *LVV ORS Chapter 9: Submission of LVV Certification Files* and *LVV ORS Chapter 10: LVV File Review System* are available to the public electronically, free of charge, from the LVVTA website www.lvvt.org.nz

5.5 Reporting, costs, and disputes

- 5.5(1) Details associated with Performance Monitoring relating to LVVTA's reporting responsibilities, the costs to an LVV Certifier, and dispute resolution processes, are set out in 'Section 10 - Reporting, Costs, & Disputes'.

5.6 Outcomes

- 5.6(1) It is expected that the application of Performance Monitoring will result in an LVV Certifier performing at a consistently high level, with the performance shortcomings that triggered the Performance Monitoring process resolved.
- 5.6(2) If the application of Performance Monitoring has not resolved the performance shortcomings that triggered the process, LVVTA:
- (a) must report the ongoing performance shortcomings to NZTA; and
 - (b) may recommend to NZTA that a Performance Review Meeting be applied to the LVV Certifier.
- 5.6(3) LVVTA will notify the LVV Certifier of the outcome of the Performance Monitoring, and of any recommendations that have been made to NZTA as a result of the outcome.

Section 6 Performance Improvement Meetings

6.1 Introduction

A Performance Improvement Meeting is a process used by LVVTA to formally engage with an LVV Certifier to understand why performance shortcomings exist, and develop a strategy by which to resolve the issues.

6.2 When Performance Improvement Meetings are applied

- 6.2(1) A Performance Improvement Meeting is a combination of meeting room and workshop-based environment that may be applied in cases where LVVTA's normal support systems referred to in 4.3, and the initial performance management process of Performance Monitoring has not resolved an LVV Certifier's performance shortcomings.
- 6.2(2) A Performance Improvement Meeting may be applied by agreement between LVVTA and NZTA either:
- (a) when an LVV Certifier is featuring disproportionately within LVVTA's *LVV Certifier Error Report Summaries* (see Notes 1 and 2 below); or
 - (b) when an LVV Certifier is not providing fair and efficient customer service (see Note 3 below); or
 - (c) in response to a complaint made against an LVV Certifier or about an LVV certified vehicle; or
 - (d) as a result of a disciplinary action taken against an LVV Certifier by NZTA.

Note 1 Falling into the 'red zone' of the *LVVTA Error Report Summary*, particularly for a sustained period, is a strong indicator that an LVV Certifier is 'featuring disproportionately' and is a 'high-risk' LVV Certifier.

Note 2 LVVTA's *LVV Certifier Error Report Summaries* are detailed in *LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

Note 3 Customer service expectations are detailed in *LVV ORS Chapter 7: LVV Certifier Conduct & Service*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

6.3 Purpose of Performance Improvement Meetings

6.3(1) The purpose of a Performance Improvement Meeting is to:

- (a) establish why performance shortcomings exist, and within which LVV certification activities; and
- (b) help the LVV Certifier to:
 - (i) correctly apply the *LVV Standards* and other relevant LVV technical requirements; and
 - (ii) make judgments and decisions that are technically and operationally sound.

6.4 Requirements of Performance Improvement Meetings

6.4(1) A Performance Improvement Meeting:

- (a) requires an LVV Certifier to attend a one-day meeting at LVVTA to undergo a one-on-one assessment and training session with an LVVTA technical staff member in areas where performance shortcomings exist; and
- (b) can be applied on a one-off basis, or more frequently, as agreed on a case-by-case basis between LVVTA and NZTA; and
- (c) may, at LVVTA's discretion, be applied instead of, or in addition to, the LVV Certifier's annual On-site Visit (see Note 1 below).

Note 1 The annual On-site Visit is detailed in *Section 2 of LVV ORS Chapter 14: LVVTA Services & Support*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

6.5 Responsibilities of LVV Certifier

6.5(1) An LVV Certifier who is required to attend a Performance Improvement Meeting must:

- (a) travel to LVVTA, at a time specified by LVVTA; and
- (b) where required, engage with an LVVTA technical staff member in a meeting room-based assessment and training environment; and
- (c) where required, conduct an LVV certification inspection on one or more vehicles provided by LVVTA, with an LVVTA technical staff member present to assist and guide the LVV Certifier where appropriate; and
- (d) comply with all directives from LVVTA in a spirit of cooperation and willingness.

6.6 Reporting, costs, and disputes

6.6(1) Details associated with a Performance Improvement Meeting relating to LVVTA's reporting responsibilities, the costs to an LVV Certifier, and dispute resolution processes, are set out in 'Section 10 – Reporting, Costs, & Disputes'.

6.7 Outcomes

- 6.7(1) It is expected that the application of the Performance Improvement Meeting will result in an LVV Certifier performing at a consistently high level, with the performance shortcomings that triggered the Performance Improvement Meeting resolved.
- 6.7(2) If the application of the Performance Improvement Meeting has not resolved the performance shortcomings that triggered the process, LVVTA:
- (a) must report the ongoing performance shortcomings to NZTA; and
 - (b) may recommend to NZTA that Imposed Mentoring be applied to the LVV Certifier.
- 6.7(3) LVVTA will notify the LVV Certifier of the outcome of the Performance Improvement Meeting, and of any recommendations that have been made to NZTA as a result of the outcome.

Section 7 Imposed Mentoring

7.1 Introduction

Imposed Mentoring is a process used by LVVTA to help the LVV certification performance of an LVV Certifier through an LVVTA-managed process of on-the-job mentoring by a suitably skilled and experienced mentor.

7.2 When Imposed Mentoring is applied

- 7.2(1) Imposed Mentoring is a workshop-based mentoring process that may be applied in cases where LVVTA's normal support systems referred to in 4.3, and the performance management processes including Performance Monitoring and Performance Improvement Meetings have not resolved an LVV Certifier's performance shortcomings.
- 7.2(2) Imposed Mentoring may be applied by agreement between LVVTA and NZTA either:
- (a) when an LVV Certifier is featuring disproportionately within LVVTA's *LVV Certifier Error Report Summaries* (see Notes 1 and 2 below); or
 - (b) in response to a complaint made against an LVV Certifier or about an LVV certified vehicle; or
 - (c) as a result of a disciplinary action taken against an LVV Certifier by NZTA.

Note 1 Falling into the 'red zone' of the *LVVTA Error Report Summary*, particularly for a sustained period, is a strong indicator that an LVV Certifier is 'featuring disproportionately' and is a 'high-risk' LVV Certifier.

Note 2 LVVTA's *LVV Certifier Error Report Summaries* are detailed in *LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

7.3 Purpose of Imposed Mentoring

- 7.3(1) The purpose of Imposed Mentoring is to help the mentored LVV Certifier to:
- (a) correctly apply the LVV standards and other relevant LVV technical requirements; and
 - (b) make judgments and decisions that are technically and operationally sound.

7.4 Imposed Mentoring Provider

- 7.4(1) Imposed Mentoring requires an appropriately skilled and experienced mentor, appointed by LVVTA for the purpose, to provide support and guidance to the mentored LVV Certifier while carrying out a specified number of LVV certification inspections (see Note 1 below).

Note 1 A 'specified number of LVV certification inspections' will be determined by LVVTA and NZTA on a case-by-case basis, however will generally be between five and ten LVV certification inspections.

- 7.4(2) The mentor may be either:

- (a) a highly experienced LVV Certifier in whom LVVTA has a high degree of confidence (see Notes 1 to 3 below); or
- (b) an LVVTA technical staff member.

Note 1 LVVTA develops the 'high degree of confidence' objectively, based on the technical and operational decision-making performance of the LVV Certifier recorded in LVVTA's historical *LVV Certifier Error Report Summaries*.

Note 2 LVVTA's *LVV Certifier Error Report Summaries* are detailed in *LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

Note 3 If using an LVV Certifier to provide the Imposed Mentoring, LVVTA will make all reasonable efforts to engage an LVV Certifier who has no commercial conflict of interest with the mentored LVV Certifier.

7.5 Responsibilities of mentored LVV Certifier

- 7.5(1) The mentored LVV Certifier will:

- (a) carry out the specified number of LVV certification inspections while being overseen and supported by the mentor, and
- (b) fit in with the schedules and availability of the mentor (see Note 1 below); and
- (c) undergo the Imposed Mentoring at a place specified by LVVTA (see Note 2 below); and
- (d) comply with any directives provided by LVVTA during the process in a spirit of willingness and cooperation.

Note 1 The requirement for the mentored LVV Certifier to fit in with the schedules and availability of the mentor will be applied in such a way so as to minimise, as much as practical, travel and inconvenience to both the mentor, and the mentored LVV Certifier.

Note 2 The place of inspection may be at the premises of the mentor, the mentored LVV Certifier, LVVTA office, or an independent inspection facility, as specified by LVVTA. Every effort will be made to minimise travel and inconvenience to both the mentor, and the mentored LVV Certifier.

7.6 Responsibilities of mentor

- 7.6(1) The mentor will, during the Imposed Mentoring process:

- (a) oversee each LVV certification carried out by the mentored LVV Certifier; and
- (b) provide the mentored LVV Certifier with guidance and support; and
- (c) provide a brief written report to LVVTA for each vehicle LVV certified by the mentored LVV Certifier to confirm that the low volume vehicle is safe and compliant.

- 7.6(2) The mentor will, upon completion of the Imposed Mentoring process, provide LVVTA with a written report outlining, in general terms, whether the mentored LVV Certifier was able, towards the end of the Imposed Mentoring process, to:
- (a) correctly apply the *LVV Standards* and other relevant LVV technical requirements; and
 - (b) make judgments and decisions that are technically and operationally sound; and
 - (c) exhibit the necessary competence to carry out LVV certification unsupervised without presenting any safety risk to the motoring public.

7.7 Reporting, costs, and disputes

- 7.7(1) Details associated with Imposed Mentoring relating to LVVTA's reporting responsibilities, the costs to an LVV Certifier, and dispute resolution processes, are set out in 'Section 10 – Reporting, Costs, & Disputes'.

7.8 Outcomes

- 7.8(1) It is expected that the application of Imposed Mentoring will result in an LVV Certifier performing at a consistently high level, with the performance shortcomings that triggered the Imposed Mentoring process resolved.
- 7.8(2) If the application of Imposed Mentoring has not resolved the performance shortcomings that triggered the process, LVVTA:
- (a) must report the ongoing performance shortcomings to NZTA; and
 - (b) may recommend to NZTA that a Competence Reassessment be applied to the LVV Certifier.
- 7.8(3) LVVTA will notify the LVV Certifier of the outcome of the Imposed Mentoring, and of any recommendations that have been made to NZTA as a result of the outcome.

Section 8 Competence Reassessment

8.1 Introduction

A Competence Reassessment is a process used by LVVTA to formally reassess the competence of an LVV Certifier who is consistently exhibiting performance shortcomings, and definitively determine whether the LVV Certifier possesses the necessary competence to carry out LVV certification activities without presenting safety risk to the public.

8.2 When Competence Reassessment is applied

- 8.2(1) Competence Reassessment is a combination of meeting room and workshop-based environment that may be applied in cases where LVVTA's normal support systems referred to in 4.3, and performance management processes including Performance Monitoring, Performance Improvement Meetings, and Imposed Mentoring have been exhausted and an LVV Certifier's performance shortcomings remain unresolved.
- 8.2(2) Competence Reassessment may be applied by agreement between LVVTA and NZTA either:
- (a) when an LVV Certifier is featuring disproportionately within LVVTA's *LVV Certifier Error Report Summaries* (see Notes 1 and 2 below); or

- (b) in response to a complaint made against an LVV Certifier or about an LVV certified vehicle; or
- (c) as a result of a disciplinary action taken against an LVV Certifier by NZTA.

Note 1	Falling into the 'red zone' of the <i>LVVTA Error Report Summary</i> , particularly for a sustained period, is a strong indicator that an LVV Certifier is 'featuring disproportionately' and is a 'high-risk' LVV Certifier.
Note 2	LVVTA's <i>LVV Certifier Error Report Summaries</i> are detailed in <i>LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

8.3 Purpose of Competence Reassessment

- 8.3(1) The purpose of a Competence Reassessment is to enable LVVTA to definitively establish an LVV Certifier's strengths and weaknesses, so as to accurately determine those LVV certification categories that are suitably aligned with the LVV Certifier's knowledge and practical experience.

8.4 Competence Reassessment providers

- 8.4(1) The Competence Reassessment will be carried out by a group of people, appointed by LVVTA for the purpose (known as the 'Reassessment Team') comprised of:
- (a) an LVVTA technical staff member who will manage the Competence Reassessment process; and
 - (b) an independent vehicle modification and construction expert (see Note 1 below); and
 - (c) a representative from NZTA.

Note 1	The independent vehicle modification and construction expert may be someone from the vehicle modification and construction industry, or another LVV Certifier. In the case of another LVV Certifier being used, LVVTA will make all reasonable efforts to engage an LVV Certifier who has no commercial conflict of interest with the LVV Certifier being assessed.
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8.5 Requirements of Competence Reassessment

- 8.5(1) Competence Reassessment requires an LVV Certifier to undergo a one-day assessment at LVVTA to enable the Reassessment Team to accurately:
- (a) assess the LVV Certifier's level of LVV certification competence in those LVV certification categories held where performance shortcomings have been identified; and
 - (b) determine, as far as is possible, the LVV Certifier's level of willingness to consistently and diligently apply the *LVV Standards* and other relevant LVV technical requirements, and operational processes (see Note 1 below).

Note 1	There is a degree of subjectivity associated with determining an LVV Certifier's willingness to consistently and diligently apply the <i>LVV Standards</i> and other relevant LVV technical requirements, and operational processes, however the learnings from the Competence Reassessment will be considered together with the actual and anecdotal evidence of the LVV Certifier's performance history to provide a comprehensive view.
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8.6 Responsibilities of LVV Certifier

- 8.6(1) An LVV Certifier who is required to attend Competence Reassessment must:
- (a) travel to LVVTA, at a time specified by LVVTA; and

- (b) where required, with the Reassessment Team present, engage with the LVVTA technical staff member:
 - (i) in a meeting room-based assessment and training environment; and
 - (ii) in an LVV certification inspection on one or more vehicles provided by LVVTA; and
 - (iii) in some or all, as specified by LVVTA, of the Formal Assessment used in the application process for a person wishing to become appointed as an LVV Certifier (see Note 1 below);
- and
- (c) comply with all directives from LVVTA in a spirit of cooperation and willingness.

Note 1 The Formal Assessment is detailed in *Section 10 of LVV ORS Chapter 5: LVV Certifier Application & Appointment*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvt.org.nz

8.7 Reporting, costs, and disputes

- 8.7(1) Details associated with Competence Reassessment relating to LVVTA's reporting responsibilities, the costs to an LVV Certifier, and dispute resolution processes, are set out in 'Section 10 – Reporting, Costs, & Disputes'.

8.8 Outcomes

- 8.8(1) It is expected that the application of the Competence Reassessment will result in an LVV Certifier performing at a consistently high level, with the performance shortcomings that triggered the Competence Reassessment resolved.
- 8.8(2) If the application of the Competence Reassessment has not resolved the performance shortcomings that triggered the process, LVVTA:
- (a) must report the ongoing performance shortcomings to NZTA; and
 - (b) may request, on the basis that LVVTA is not confident that the LVV Certifier can make consistent safety-related technical decisions, that NZTA intervenes (see Note 1 below).

Note 1 NZTA's involvement in the regulatory processes associated with LVV certification can be found in *LVV ORS Chapter: 16: LVVTA-NZTA Co-regulatory Relationship*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvt.org.nz

- 8.8(3) LVVTA will notify the LVV Certifier of the outcome of the Competence Reassessment, and of any recommendations that have been made to NZTA as a result of the outcome.

Section 9 Peer Review Process

9.1 Introduction

The Peer Review Process is not part of the upward-escalation performance management system comprising Performance Monitoring, Performance Improvement Meetings, Imposed Mentoring, and Competence Reassessment - but rather is a stand-alone performance management process usually applied in a situation where a specific vehicle has been identified as being potentially unsafe.

9.2 When the Peer Review Process is applied

- 9.2(1) The Peer Review Process is a workshop-based assessment of an LVV certified low volume vehicle that LVVTA considers may be unsafe, and a collective expert opinion is required in order to achieve a fair and objective determination.
- 9.2(2) The Peer Review Process may be applied by agreement between LVVTA and NZTA either:
- (a) when it is considered, during a File Review, that an LVV certified vehicle may be unsafe (see Note 1 below); or
 - (b) in response to a complaint made against an LVV Certifier or about an LVV certified vehicle; or
 - (c) as a result of a disciplinary action taken against an LVV Certifier by NZTA.

Note 1 File Reviews are detailed in *LVV ORS Chapter 10: LVV File Review System*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

9.3 Purpose of the Peer Review Process

- 9.3(1) The purpose of the Peer Review Process is to create an opportunity for a group of the LVV Certifier's peers to review the vehicle, and the LVV Certifier's technical decisions, and present a collective view in order to assist LVVTA in objectively determining:
- (a) whether the vehicle under review is unsafe; and
 - (b) if the vehicle is unsafe:
 - (i) whether there are any circumstances which could justify the LVV Certifier's decisions to LVV certify the unsafe vehicle; and
 - (ii) whether the LVV Certifier's actions constitutes negligence, and if so, the extent of the negligence; and
 - (iii) what actions should be taken in relation to rectifying the safety risks associated with the vehicle.

9.4 Peer Review Group composition

- 9.4(1) The Peer Review Process will be carried out by a group of people, established by LVVTA for the purpose (known as the 'Peer Review Group'), comprised of:
- (a) a Chairperson with strong technical and LVV certification knowledge, who may be either an LVVTA technical staff member, or an independent person appointed to the role by LVVTA; and
 - (b) one or more independent vehicle modification and construction experts, with expertise relevant to the vehicle under review; and
 - (c) one or more LVV Certifiers who have LVV certification categories equivalent to those required for the vehicle under review (see Note 1 below); and
 - (d) a representative from NZTA.

Note 1 LVVTA will make all reasonable efforts to engage LVV Certifiers who have no commercial conflict of interest with the LVV Certifier under review – meaning that, as far as is reasonably practical, LVV Certifiers involved in the Peer Review Process will be from outside of the geographical coverage area of the LVV Certifier under review.

9.5 Establishment of the Peer Review Group

- 9.5(1) The establishment of the Peer Review Group will be coordinated by LVVTA, who will:
- (a) appoint a suitably qualified Chairperson; and
 - (b) ensure that the appointed Chairperson conducts the process without prejudice, and applies fairness and objectivity throughout the process.

9.6 Responsibilities of the Chairperson

- 9.6(1) The Chairperson will:
- (a) appoint the members of the Peer Review Group; and
 - (b) arrange and co-ordinate the review process; and
 - (c) ensure that the process is focused on the safety-related technical decision-making of the LVV Certifier; and
 - (d) at the completion of the review, provide a written report which reflects the consensus of the Peer Review Group, to assist LVVTA in making a determination relating to the vehicle, and to the LVV Certifier's safety-related decisions.

9.7 Responsibilities of the Peer Review Group

- 9.7(1) The Peer Review Group will, during its assessment of the vehicle, take into consideration:
- (a) the point of view provided by the LVV Certifier under review; and
 - (b) what would be reasonably expected of a skilled and experienced LVV Certifier; and
 - (c) the presence, accessibility, clarity, and scope for misinterpretation, of the relevant *LVV Standards* and other LVVTA technical requirements that should have been applied; and
 - (d) what decisions the LVV Certifiers appointed to the Peer Review Group would have made had they been presented with the same vehicle for an LVV certification inspection.

9.8 Responsibilities of the LVV Certifier

- 9.8(1) An LVV Certifier who is required to attend a Peer Review Process:
- (a) must travel to a venue, and at a time, specified by LVVTA; and
 - (b) is encouraged to provide the Peer Review Group with any relevant background information, reasons for the technical decisions made, and provide justification for any departures from the applicable requirements, either:
 - (i) via the submission of a written statement; or
 - (ii) by making a presentation directly to the Peer Review Group prior to the commencement of the Peer Review Process.
- 9.8(2) An LVV Certifier attending a Peer Review Process will not be permitted to be present during the Peer Review Group's review of the vehicle, however will be given the opportunity, at the completion of the Peer Review Process (see Note 1 below):
- (a) to be advised of the collective view of the Peer Review Group; and
 - (b) to discuss the findings with the Peer Review Group; and

- (c) if the LVV Certifier's view is not aligned with that of the Peer Review Group, to defend their position.

Note 1 Attending a Peer Review Process can be a difficult environment for an LVV Certifier who may have made some poor LVV certification decisions. However, it has been shown, many times over many years, to be the most effective way of enabling an LVV Certifier who is not performing at the same level of competence as the majority of other LVV Certifiers, to understand and accept this. Being told by a group of peers (who are all of the same view) that the LVV Certifier is on the wrong page can have a far more profound effect on an LVV Certifier than being told the same thing by LVVTA or NZTA.

The Peer Review Group Chairperson will ensure that the Peer Review Process occurs in a fair, reasonable, and respectful manner.

9.8(3) During any discussions with the Peer Review Group, the LVV Certifier must:

- (a) engage with the members of the Peer Review Group in an open and respectful manner; and
- (b) listen to, and consider, all points of view of all Peer Review Group members; and
- (c) comply with all directives from LVVTA in a spirit of cooperation and willingness.

9.9 Reporting, costs, and disputes

9.9(1) Details associated with the Peer Review Process relating to LVVTA's reporting responsibilities, the costs to an LVV Certifier, and dispute resolution processes, are set out in 'Section 10 – Reporting, Costs, & Disputes'.

9.10 Outcomes

9.10(1) It is expected that the application of a Peer Review Process will resolve the situation that triggered the Peer Review Process, and that, where the LVV Certifier has made incorrect technical decisions, the LVV Certifier has accepted this and undertaken to apply the technical requirements correctly into the future.

9.10(2) If the application of the Peer Review Process has not achieved the objective specified in 9.10(1), LVVTA:

- (a) must report the outcome to NZTA; and
- (b) may request, on the basis that LVVTA is not confident that the LVV Certifier can make consistent safety-related technical decisions, that NZTA intervenes (see Note 1 below).

Note 1 NZTA's involvement in the regulatory processes associated with LVV certification can be found in *LVV ORS Chapter: 16: LVVTA-NZTA Co-regulatory Relationship*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

9.10(3) LVVTA will notify the LVV Certifier of the outcome of the Peer Review Process, and of any recommendations that have been made to NZTA as a result of the outcome.

Section 10 Reporting, Costs, and Disputes

10.1 Introduction

NZTA is responsible for the appointment, applying disciplinary action, suspension, or revocation of an LVV Certifier's appointment, so the outcomes of any performance management processes applied by LVVTA to an LVV Certifier must be reported to NZTA (see Note 1 below).

Note 1 NZTA's involvement in the regulatory processes associated with LVV certification can be found in *LVV ORS Chapter: 16: LVVTA-NZTA Co-regulatory Relationship*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

10.2 Reporting to NZTA

10.2(1) In the case of any performance management processes specified in *Sections 5 to 9* being applied, LVVTA will inform NZTA in writing of the outcome of the process when completed.

10.3 Costs associated with performance management processes

10.3(1) An LVV Certifier who is required to undergo any performance management processes specified in *Sections 5 to 9* will be required to (see Notes 1 to 4 below):

- (a) meet their own travel and (if necessary) accommodation costs; and
 - (b) meet all actual and reasonable costs incurred by LVVTA to apply any performance management process, which will include:
 - (i) the recuperation of direct costs incurred by LVVTA; and
 - (ii) LVVTA's time, including the preparation of any associated necessary documentation;
- and
- (c) in the case that any external persons are required for Imposed Mentoring, Competence Reassessment, or the Peer Review Process, meet all actual and reasonable costs for the external persons, which will include:
 - (i) their travel and (if necessary) accommodation costs; and
 - (ii) their time spent participating in the performance management process, including travel time.

Note 1 All time charged to an LVV Certifier undergoing any performance management process, for LVVTA's involvement, or any external person's involvement, will be based on a fair and reasonable hourly rate.

Note 2 The costs associated with the involvement of any external persons involved in a performance management process must be paid by the LVV Certifier under review to LVVTA prior to the commencement of the process, and LVVTA will reimburse the external persons for their times and costs.

Note 3 Paragraph 3.2(7) of the *Compliance Rule* provides for an LVV Certifier under investigation to bear the costs associated with the investigation process, or remedial action required, as a result of the investigation process.

Note 4 The costs associated with the provision of any performance management process may, at the discretion of LVVTA, be reduced or waived upon special circumstances.

10.3(2) Where Performance Monitoring is applied to an LVV Certifier, a fee may be applied for each LVV certification reviewed, based on a fair and reasonable hourly rate (see Note 1 below).

Note 1 The costs associated with the provision of Performance Monitoring may, at the discretion of LVVTA, be reduced or waived upon special circumstances.

10.4 LVVTA's right to recuperate costs

10.4(1) LVVTA may exercise its right to recuperate any costs incurred by the application of any performance management process it applies, and in determining whether it chooses to recuperate its costs, or what portion of its costs, LVVTA will take into consideration:

- (a) the outcome of the performance management process; and
- (b) the amount of time and cost LVVTA is subjected to in carrying out the performance management process; and
- (c) the historical performance of the LVV Certifier recorded within LVVTA's *LVV Certifier Error Report Summaries* (see Note 1 below); and
- (d) the level of co-operation and willingness shown by the LVV Certifier while working through the performance management process with LVVTA.

Note 1 LVVTA's *LVV Certifier Error Report Summaries* are detailed in *LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

10.5 Disputing the outcome

- 10.5(1) An LVV Certifier may, at any time, dispute the findings, or the action being taken by LVVTA, in relation to any of the performance management processes specified in Sections 5 to 9. If an LVV Certifier wishes to do so, the details of the dispute must be forwarded directly to NZTA (see Notes 1 and 2 below).

Note 1 An LVV Certifier should contact LVVTA to find out the details of the appropriate person within NZTA to forward the details of their dispute to, as personnel and roles within NZTA change from time to time.

Note 2 NZTA's involvement in the regulatory processes associated with LVV certification can be found in *LVV ORS Chapter: 16: LVVTA-NZTA Co-regulatory Relationship*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

Section 11 Escalation to NZTA

11.1 Introduction

NZTA is responsible for the appointment of an LVV Certifier, and for applying disciplinary action, suspension, or revocation of an LVV Certifier's appointment if an LVV Certifier repeatedly fails to maintain a consistently high standard of LVV certification performance, as is required by the LVV Certifier's *Notice of Appointment* with NZTA.

As detailed throughout this chapter, LVVTA is responsible for managing the application of the various support systems and performance management processes to LVV Certifiers as and when considered necessary. Where performance management systems are applied by LVVTA, this is, in every case, carried out with NZTA's agreement and support, and the outcomes of any performance management processes applied by LVVTA to an LVV Certifier are reported to NZTA.

If the performance management processes fail to bring about the necessary improvements, LVVTA will notify NZTA of this via a formalised 'escalation process', and NZTA will then consider taking disciplinary action, which may include suspension or revocation, as it considers necessary.

This 'division of duties', in relation to LVV Certifier performance, has been agreed on the legal basis set out in 'Appendix 1 – Legal Background to Complaint Management' at the back of this chapter.

11.2 Criteria for escalation

- 11.2(1) LVVTA will escalate an LVV Certifier performance issue as a formal complaint to NZTA, if, after the application of the performance management systems detailed in this chapter LVVTA considers that the LVV Certifier either:

- (a) fails to maintain a consistently high standard of LVV certification performance; or
- (b) presents a safety risk to members of the public; or
- (c) has or may bring NZTA, LVVTA, or the LVV certification system into disrepute.

11.2(2) LVVTA will escalate an LVV Certifier performance issue to NZTA where an 'extreme' risk to road safety is established as a result of either (see Notes 1 and 2 below):

- (a) a Technical File Review of an LVV Certifier's *LVV Certification Files*; or
- (b) a complaint being made to LVVTA by a user of the LVV certification system or other third party.

Note 1	The identification of an 'extreme' safety risk may trigger formal escalation to NZTA without the application of one or more of the support systems or performance management processes specified in this chapter.
Note 2	Technical File Reviews are explained in <i>Section 3 of LVV ORS Chapter 10: LVV File Review System</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

11.3 Escalation process

11.3(1) Prior to escalating an LVV Certifier performance issue to NZTA, LVVTA will request a meeting with NZTA, and provide NZTA with all necessary information to determine whether enforcement action needs to be taken, and if so, what kind of enforcement action.

11.3(2) When an LVV Certifier performance matter specified in 11.2(1) is escalated to NZTA:

- (a) LVVTA and NZTA will follow the *LVVTA-NZTA Complaint & Escalation Process* (see Note 1 below); and
- (b) NZTA will (see Note 2 below):
 - (i) take responsibility for any enforcement action it considers necessary; and
 - (ii) keep LVVTA apprised of any enforcement process; and
 - (iii) involve LVVTA in any enforcement process as considered necessary; and
 - (iv) advise LVVTA of the outcome upon the completion of the investigation.

Note 1	The <i>LVVTA-NZTA Complaint & Escalation Process</i> is a document agreed by LVVTA and NZTA which sets out a clearly defined process for the escalation of non-compliance for LVV certifications and LVV Certifiers, to provide consistency in resolutions, in the case of a situation specified in 11.2(1) occurring.
Note 2	NZTA's involvement in the regulatory processes associated with LVV certification can be found in <i>LVV ORS Chapter: 16: LVVTA-NZTA Co-regulatory Relationship</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

Terms & Definitions for Chapter 13

Applicable requirements	means any technical or operational requirement referred to in the <i>LVV Code</i> which an LVV must comply with in order to be approved for LVV certification.
AVI	(Authorised Vehicle Inspector) means a person who carries out WoF inspections on behalf of NZTA.

Category Extension	A process which enables an LVV Certifier to operate outside their authorised LVV Certification Categories in special circumstances.
CCM	(NZ Car Construction Manual) means LVVTA's detailed technical standards, incorporated by reference under the <i>LVV Code</i> , which must be met to enable an LVV to comply with applicable requirements. The CCM is referred to by the corresponding <i>LVV Standard</i> .
Competence Reassessment	means a form of LVVTA performance management for an individual LVV Certifier, applied by LVVTA to determine whether the LVV Certifier possesses the necessary competence to safely carry out LVV certification activities, and is usually imposed where LVVTA's normal support systems are not enabling the LVV Certifier to achieve the expected standard of LVV certification performance.
Entry Certifier	means a person who inspects a vehicle for entry certification on behalf of NZTA.
Entry Certification	means the inspection process which a vehicle is required to undergo before it can be registered for road use as part of the New Zealand vehicle fleet.
Imposed Mentoring	means a form of LVVTA performance management for an individual LVV Certifier, usually applied by another experienced LVV Certifier via a one-on-one mentoring process for a specified period, and is usually imposed where LVVTA's normal support systems are not enabling the LVV Certifier to achieve the expected standard of LVV certification performance.
Inspection	means the vehicle inspection process specified in <i>section 2.4, 2.5, and 2.6</i> of the <i>LVV Code</i> , carried out by an LVV Certifier during the LVV certification of a low volume vehicle.
LVV	(Low Volume Vehicle) means, in simple terms, vehicles which are modified or scratch-built in small numbers, and includes individually modified or scratch-built vehicles. The full definition of an LVV is contained in the <i>LVV Code</i> .
LVV Base Forms	(Low Volume Vehicle Base Forms) means the set of <i>Forms</i> used by an LVV Certifier as part of their inspection of an LVV which are common to all LVV certifications.
LVV Certification	(Low Volume Vehicle Certification) means the process specified by the <i>LVV Code</i> , by which the design of an LVV is determined to comply with any applicable requirements, and, in recognition of which, an LVV EDP is affixed.
LVV Certification File	(Low Volume Vehicle Certification File) means the set of documents, including the <i>LVV Base Forms</i> , <i>LVV Inspection Form-sets</i> , supporting information, and photographic record, which an LVV Certifier is required to collate during an LVV certification inspection process, and submit to LVVTA upon completion.
LVV Certifier	(Low Volume Vehicle Certifier) means a person appointed by NZTA under the provisions of <i>Land Transport Rule: Vehicle Standards Compliance 2002</i> , to carry out certification of modified and scratch-built LVVs, as specified by <i>Part 2</i> of the <i>LVV Code</i> .
LVV Certify	(Low Volume Vehicle Certify) means the same as LVV certification.
LVV Code	(Low Volume Vehicle Code or the Code) means an LVVTA document which is incorporated by reference into the <i>Land Transport Rule: Vehicle Standards Compliance 2002</i> , and all applicable individual <i>Land Transport equipment rules</i> , that provides the legal framework to enable the LVV certification of modified and scratch-built LVVs in New Zealand.

LVV CPR	(Low Volume Vehicle Certifier Performance Report or LVV Certifier Performance Report) means the reporting document that LVVTA uses to report the individual and overall performance of the LVV Certifiers to NZTA each month.
LVV EDP	(Low Volume Vehicle Electronic Data Plate) is an RFID tag, in use from February 2021, fitted to an LVV upon completion of the LVV certification process, which when scanned by an NFC-capable device, displays details and photographs of the modifications and construction features on the LVV to which it is affixed.
LVV F001 Statement of Compliance Certificate	(Low Volume Vehicle Statement of Compliance Certificate or F001) is the principal compliance document filled out by an LVV Certifier during LVV certification, which lists the LVV's modifications and construction features, summarises the evidence of compliance, and confirms that it is safe to operate and complies with all applicable requirements.
LVV File Review System	(Low Volume Vehicle File Review System) means a comprehensive desk-top auditing process applied by LVVTA to a specified percentage of <i>LVV Certification Files</i> submitted by LVV Certifiers, upon completion of their LVV certifications, as an additional step in ensuring safety and compliance of LVVs.
LVV ORS	(Low Volume Vehicle Operating Requirements Schedule or ORS) means the document, incorporated by reference under the <i>LVV Code</i> , which provides LVVTA's operational processes and systems necessary to meet applicable requirements. The <i>LVV ORS</i> sets out the obligations and responsibilities of LVVTA, and the LVV Certifiers.
LVV Standards	(Low Volume Vehicle Standards) means LVVTA's technical standards, incorporated by reference under the <i>LVV Code</i> , that set out the legal requirements which vehicles that are modified and scratch-built vehicles in New Zealand must meet. Each <i>LVV Standard</i> refers to a corresponding <i>CCM chapter</i> or <i>MCM chapter</i> for detailed technical requirements.
LVV Supporting Documents	(Low Volume Vehicle Supporting Documents) means those documents listed in <i>Annex 4</i> of the <i>LVV Code</i> which comprise part of the applicable requirements, and support the application of the LVV certification system.
LVVTA	(Low Volume Vehicle Technical Association) is an incorporated society comprised of specialist vehicle associations. Established in 1992, its objectives are to represent the interests of vehicle modifiers and builders in New Zealand, and to ensure high safety standards for modified and scratch-built LVVs. The LVVTA owns and administers the <i>LVV Code</i> .
LVVTA Early Warning Report	means the LVVTA report system for informing NZTA about any potential complaint, problem, or risk, relating to an LVV certification matter as early as possible.
MCM	(NZ Motorcycle Construction Manual) means LVVTA's detailed technical standards, incorporated by reference under the <i>LVV Code</i> , which must be met to enable a low volume motorcycle to comply with applicable requirements. The <i>MCM</i> is referred to by the corresponding <i>LVV Standard</i> .
Modification	is defined in <i>Land Transport Rule: Vehicle Standards Compliance 2002</i>) to change a vehicle from its original state by altering, substituting, adding or removing any structure, system, component or equipment, but does not include repair. 'Modified' and 'modification' have corresponding meanings.
NFC	(Near Field Communication) means a short-range wireless technology, typically requiring a distance of 40 mm or less to initiate a contact.

NoA	(Notice of Appointment) , means the contract which exists between an LVB Certifier and NZTA, that provides an LVB Certifier with the authorisation to carry out LVB certification on behalf of NZTA, and which outlines the terms, conditions, and obligations of the appointment.
NZTA	(New Zealand Transport Agency) is a Crown entity responsible for managing New Zealand's land transport system.
Peer Review Process	means a form of LVBTA performance management for an individual LVB Certifier, applied by a group of selected experts, to determine whether an LVB Certifier's actions are negligent, and if so, to what extent. This is usually imposed where LVBTA's normal support systems are not enabling the LVB Certifier to achieve the expected standard of LVB certification performance.
Performance Improvement Meetings	means a form of LVBTA performance management for an individual LVB Certifier, applied by LVBTA to understand why performance shortcomings exist, and develop a strategy by which to resolve the issues, and is usually imposed where LVBTA's normal support systems are not enabling the LVB Certifier to achieve the expected standard of LVB certification performance.
Performance Monitoring	means a form of LVBTA performance management involving 100% application of the LVB File Review system by LVBTA for an individual LVB Certifier, usually imposed where LVBTA's normal support systems are not enabling the LVB Certifier to achieve the expected standard of LVB certification performance.
PRS	(Performance Review System) is the quality management monitoring tool used by NZTA to measure the performance of all certifiers, including LVB Certifiers.
RFID	(Radio Frequency Identification) is a technology which uses electromagnetic fields to automatically identify and track tags attached to objects. These tags link to electronically stored information, which can be accessed using RFID readers.
Risk-assessment Matrix	means a process used to judge the likely impact of an action, by a calculable risk rating, based on the likelihood of occurrence and severity of the potential outcome. A low-risk rating may be from an event that is very unlikely to occur or will have little impact if it does occur, whereas a high-risk rating may be from an event that is likely to occur or could create severe consequences if it were to occur.
Scratch-built (LVB)	means, in simple terms, an LVB which has been individually constructed from unrelated components, or a mass-produced vehicle which has been modified to such an extent that it can no longer be considered to be a modified mass-produced vehicle. The full legal definition of a scratch-built LVB is currently under review, and will be incorporated within the <i>LVB Code</i> once revised.
Technical Support Team	means a team of technical experts with appropriate specialist knowledge and experience, appointed by LVBTA on an as-and-when-required basis, to support an LVB Certifier when presented with an LVB which incorporates particularly complex modification or construction features.
TWG	(Technical Working Group) is a working group involving LVBTA and NZTA technical staff, which meets regularly to focus on day-to-day technical issues, challenges, and problems relating to the LVB certification system.

Appendix 1 – Legal Background to Complaint Management

A1-1 Introduction

Resolving complaints about an LVV Certifier, or the LVV certification system, is the responsibility of NZTA, however one of LVVTA's roles is to take responsibility for managing minor LVV certification inspection issues and complaint-related issues that crop up on a regular basis, in order to reduce NZTA's resources being applied in the LVV certification area.

Within the division of roles and responsibilities between LVVTA and NZTA in relation to LVV certification, LVVTA is expected to determine whether safety risks that have been identified are serious, and whether complaints that have been made have foundation, and if so, to then deal with those lower-level issues that do not present a serious risk to road safety.

A1-2 Requirements of the Compliance Rule

This division of responsibilities between LVVTA and NZTA must be balanced against an important requirement within 2.3(4)(b) of *Land Transport Rule 35001: Vehicle Standards Compliance* (the *Compliance Rule*) which requires an LVV Certifier to 'notify' NZTA if there is reason to believe that the inspection and certification of a vehicle may have been carried out 'incorrectly'.

There are difficulties in applying this requirement (especially in relation to the words 'notify' and 'incorrectly') because:

- the term 'incorrectly' has a very wide scope, going much further than matters relating just to serious safety issues, which is NZTA's primary concern; and
- it is unclear whether the *Compliance Rule* requires the LVV Certifier to 'notify' NZTA about an 'incorrectly' certified vehicle that is one of the LVV Certifier's own LVV certifications, or about one that has been LVV certified by someone else; and
- an LVV Certifier will, in many cases, be reluctant to notify NZTA about an 'incorrectly' certified vehicle – particularly in the case of the LVV Certifier's own LVV certification; and
- the requirement could mean that every administrative or minor technical error that an LVV Certifier makes in relation to a completed and submitted *LVV Certification File* could be regarded as having to be 'notified' to NZTA.

A1-3 Extent of 'notification'

The *Compliance Rule* refers to a 'record of determination', which, in the case of LVV Certification, is the *F001 Statement of Compliance Certificate (LVV F001)*. As soon as the *LVV F001* is signed by an LVV Certifier, the LVV Certifier has declared that the vehicle complies with all applicable requirements.

Obviously, NZTA does not need or want to be notified every time an LVV Certifier makes a simple administrative error such as recording 'overhead valve' instead of 'overhead camshaft', or a compliance or technical error which presents little if any safety risk. Therefore, in this regard, the following points in relation to the correct interpretation and application of 'notification' within 2.3(4)(b) of the *Compliance Rule* have been agreed between LVVTA and NZTA:

- 'notification' to NZTA only applies to those vehicles for which an *LVV F001* has been filled out and signed by an LVV Certifier; and
- 'notification' is not necessarily a complaint; and

- ‘notification’ can be provided by LVVTA to NZTA rather than directly by an LVV Certifier.

A1-4 Agreed notification procedure

The key issue in establishing and agreeing the lines of responsibility in this regard is that NZTA is aware that, in the case of an issue that does not require notification to NZTA, the issue is still being addressed and correctly resolved.

It has been agreed between LVVTA and NZTA that the requirement of 2.3(4)(b) of the *Compliance Rule* for notification to NZTA (for those problems and complaints that do not present a serious safety risk) is fulfilled by the established systems and processes, and communication channels, detailed within the following LVVTA documents which have been formally signed off by both NZTA and LVVTA:

- the file review and error recording and reporting systems set out in *LVV ORS Chapter 10: File Review Systems* and *LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting*; and
- the LVV Certifier performance management systems set out in this LVV ORS Chapter; and
- the LVV Certifier support systems set out in *LVV ORS Chapter 14: LVVTA Services & Support*; and
- the communication channels between LVVTA and NZTA set out in *LVV ORS Chapter 15: LVVTA Committees & Working Groups*; and
- the formal relationship between LVVTA and NZTA, as set out in *LVV ORS Chapter 16: LVVTA-NZTA Co-regulatory Relationship*.

The systems and processes detailed within these documents enable LVVTA to work directly with the LVV Certifier to resolve problems and complaints that do not present a serious safety risk as they arise, however the recorded outcomes are regularly reported to NZTA so that while NZTA does not need to become involved in these lower-level issues, it has awareness of them.

Any LVV-related information that comes to LVVTA’s attention, by any means, that is an ‘extreme’ safety risk (as defined by Table 13.1 - Risk-assessment Matrix in this chapter) to the public about an LVV certified vehicle will be provided directly to NZTA.

Appendix 2 – LVVTA Complaint Resolution Procedure

A2-1 Introduction

A customer service-related issue or a vehicle safety issue relating to an LVV Certifier, may come to LVVTA's attention in the form of a formal complaint, or via an informal opinion or expression of concern. For the purpose of explaining LVVTA's complaint resolution procedure, any formal complaint, or other concerns or issues relating to an LVV Certifier's performance that LVVTA believes warrants an investigation will be referred to as a 'complaint'.

A2-2 Customer service-related complaints

If LVVTA receives a complaint about an LVV Certifier from a user of the LVV certification system or other third party in relation to customer service issues, LVVTA will apply the process detailed in 'Section 4 – Customer Complaints' in *LVV ORS Chapter 11: Error Recording & Reporting*.

A2-3 Vehicle safety-related complaints

If LVVTA receives a complaint about an LVV Certifier from a user of the LVV certification system or other third party in relation to vehicle safety issues, LVVTA will apply the complaint resolution procedure set out in this Appendix.

A2-4 Complaint resolution procedure

All written complaints will be acknowledged in writing within three working days from receipt, and the investigation will be completed and a resolution provided to the complainant within a reasonable time period. Where this is not possible, the complainant will be kept informed of the situation.

The steps involved in addressing a complaint are as follows (note that not all steps will be necessary in every case, and it may be appropriate to change the order in which these steps are carried out in some cases):

- After a complaint has been received, LVVTA will create a file folder, and record the details of the issue raised, including:
 - complainant name, contact details, company or business name, together with any interest the complainant has in the vehicle or LVV Certifier (e.g. vehicle owner, business competitor etc); and
 - the name of the LVV Certifier, and the date the issue is alleged to have occurred; and
 - the vehicle make, identity, and description of modifications, and the issues causing the complaint; and
- LVVTA will gather any related information for the folder, and confirm the details of the vehicle that have been provided, as far as is possible.
- If LVVTA has reason to believe that the complaint may be valid and that a vehicle has been LVV certified which may present a safety risk, LVVTA will undertake an investigation in order to properly understand the basis of the complaint, and the safety of the vehicle.
- To achieve this, LVVTA will:
 - inform the LVV Certifier in question at the earliest opportunity that there has been a complaint, and that an investigation is to occur; and

- inspect the vehicle, or have the vehicle inspected by a suitably skilled and experienced vehicle modification and construction expert on LVVTA's behalf; and
- apply 'Table 13.1 – LVVTA Risk-assessment Matrix' in this chapter to determine the level of safety risk presented.
- When the level of safety risk has been determined, LVVTA will apply 'Section 3 – Assessing & Managing Risk' in this chapter to either:
 - apply one or more of LVVTA's support systems or performance management processes referred to in 'Section 4 – Support Systems vs Performance Management Processes' in this chapter; or
 - refer the LVV Certifier to NZTA as set out in 'Section 11 – Escalation to NZTA' in this chapter.

LVVTA will advise the complainant and the LVV Certifier of:

- the outcome of the investigation, and any decision that has been reached in regard to the application of any support systems or performance management processes, or referral to NZTA; and
 - any end resolution that has been achieved as a result of the application of any support systems or performance management processes, or referral to NZTA.
-